

Court No. - 21

Case :- WRIT - C No. - 22231 of 2024

Petitioner :- Satish Kumar @ Yatish Sharma

Respondent :- State Of Up And 2 Others

Counsel for Petitioner :- Sanjay Kumar Tiwari

Counsel for Respondent :- Alok Mishra,C.S.C.

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Manish Kumar Nigam,J.

1. None present for the parties.

2. List as fresh on 01.08.2024.

Order Date :- 12.7.2024

Ved Prakash

(Manish Kumar Nigam, J.) (Manoj Kumar Gupta, J.)

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Hon'ble Manoj Kumar Gupta,J.

Hon'ble Manish Kumar Nigam,J.

1. Shri Alok Mishra, learned counsel for the respondent, Electricity Department, does not dispute that under the provisions of U.P. Electricity Supply Code, 2005, the respondents ought to have carried out temporary disconnection upon consecutive default in payment of bills followed by permanent disconnection within six months. He submits that an amended bill taking into consideration the aforesaid legal provisions would be produced on the next date.

2. Accordingly, adjourned to 14 August 2024, as a fresh case.

Order Date :- 1.8.2024

Mukesh Kr.

(Manish Kumar Nigam,J.)

(Manoj Kumar Gupta,J.)

Court No. - 21

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Respondent :- State Of Up And 2 Others

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Counsel for Respondent :- Alok Mishra,C.S.C.

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Manish Kumar Nigam,J.

1. In purported compliance of our previous order, the concerned Executive Engineer through its counsel Shri Alok Mishra has furnished instructions, according to which, temporary disconnection was affected in September 2022. The electricity charges upto March 2023 was Rs.2,51,984.82 and since OTS scheme is in vogue, therefore in case the petitioner avails the same by 16.08.2024, he would be liable to pay only Rs.1,52,261.00.

2. The specific case of the petitioner is that electricity supply was disconnected in April 2016 by the Electricity Department and since then he had not consumed any electricity. However, the respondents had continued to raise demand towards electricity charges even for subsequent period.

3. The instructions furnished does not indicate that any meter reading was taken for consumption of electricity. The calculation seems to be on assumptive basis.

4. Shri Alok Mishra, learned counsel for the Electricity Department admits that in case electricity supply was disconnected on account of non payment of bill then permanent disconnection had to follow within six months.

5. We direct the concerned Executive Engineer to remain personally present along with entire original records to show

that (i) the petitioner continued to consume electricity even after April 2016; (ii) monthly bills were raised; (iii) the details of monthly bills; and (iv) in case there is no evidence of consumption of electricity after April 2016, how he justifies the calculation sheet submitted along with his instructions.

6. List as fresh on 3 September 2024.

7. Shri Alok Mishra, learned counsel for the Electricity Department will communicate the instant order to the concerned Executive Engineer for due compliance.

Order Date :- 14.8.2024

Mukesh Kr.

(Manish Kumar Nigam,J.) (Manoj Kumar Gupta,J.)

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Petitioner :- Satish Kumar @ Yatish Sharma

Respondent :- State Of Up And 2 Others

Counsel for Petitioner :- Sanjay Kumar Tiwari

Counsel for Respondent :- Alok Mishra,C.S.C.

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Kshitij Shailendra,J.

1. Heard Sri Sanjay Kumar Tiwari, learned counsel for the petitioner and Sri Alok Mishra, learned counsel appearing on behalf of respondent-Electricity Department. Sri Abhinav Tiwari, Executive Engineer, Electricity Distribution Division - II, Hathras, is also present in compliance of our previous order.

2. The instant petition has been filed praying for a writ of mandamus commanding the respondents to decide the representation of the petitioner dated 19.1.2024 and reminder dated 6.3.2024 and for a further direction to clear the dispute relating to electricity bills from April, 2016 till date, or to disconnect the tubewell connection of the petitioner.

3. In pursuance of previous order dated 14.8.2024, the concerned Executive Engineer has produced before us photostat copies of the original records.

4. Sri Alok Mishra, learned counsel for the respondent-Electricity Department, submits that the petitioner was having un-metered tubewell connection, for which he was to pay fixed amount. The said amount was revised from time to time. The petitioner has not annexed any evidence in support of his plea that the electricity supply was discontinued in the year 2016. It is submitted that the

temporary disconnection was carried out in September, 2022 and the petitioner was billed only for subsequent six months, as there would be deemed permanent disconnection after expiry of six months. The total amount due against the petitioner was Rs. 1,52,261/- and on which, surcharge was a sum of Rs. 99,723.82 and thus, the total outstanding amount was Rs. 2,51,984.82. Under One-Time Settlement Scheme (OTS), which was to be availed by the petitioner by 16.8.2024, the sum payable was Rs. 1,52,261/-, i.e. the surcharge was waived.

5. Counsel for the petitioner, after making brief submissions, concedes that there is no evidence in his possession to demonstrate that electricity was disconnected in the year 2016. He submits that the petitioner would pay the amount as disclosed by the respondent under OTS, i.e. Rs. 1,52,261/-, provided some reasonable time is granted to him.

6. Sri Alok Mishra, learned counsel for the respondent-Electricity Department, on instructions from the concerned Executive Engineer, has shown willingness to accept the amount in six monthly installments.

7. Accordingly and with consent of learned counsel for the parties, the petition is disposed of as follows: -

(a) The petitioner will pay sum of Rs. 1,52,261/- in six equal monthly installments.

(b) The first installment will become due and payable on 30th September, 2024 and the remaining installments by end of each succeeding month.

(c) In case of default in complying with the conditions stipulated above, the instant order will lapse automatically and it shall become open to the Electricity Department to proceed further in the matter in accordance with law.

8. In case entire dues are cleared by the petitioner, it shall be open to him to apply afresh for electricity connection and in which event, the application would be considered in accordance with law.

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

Order Date :- 3.9.2024

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